

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Alfredo Gonzalez	Team: Squad #3	CCRB Case #: 201805759	☒ Force	☐ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☒ Injury
Incident Date(s) Thursday, 07/05/2018 1:25 AM	Location of Incident: 1140 Burke Avenue	Precinct: 49	18 Mo. SOL 1/5/2020	EO SOL 1/5/2020	
Date/Time CV Reported Mon, 07/16/2018 2:11 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 07/16/2018 2:11 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DI Thomas Alps	00000	926498	049 PCT
2. Officers			
3. An officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Arlene Alvarez	03346	963373	049 PCT
2. POM Sean Williams	15219	931427	049 PCT
3. SGT Christophe Ryan	04698	947446	049 PCT
4. POM Stephen Brancatelli	00778	959506	049 PCT
5. POM Mato Dilica	09692	938368	049 PCT
6. POM Patrick Nicewicz	22006	959843	049 PCT
7. POM Juan Marte	05986	961919	049 PCT

Officer(s)	Allegation	Investigator Recommendation
A. DI Thomas Alps	Force: DI Thomas Alps struck § 87(2)(b) with a vehicle.	
B. An officer	Force: An officer used a chokehold against § 87(2)(b)	
C. An officer	Force: An officer used physical force against § 87(2)(b)	
D. Officers	Force: Officers used physical force against § 87(2)(b)	
E. Officers	Force: Officers used physical force against § 87(2)(b)	

Case Summary

DI Thomas Alps of the 49th Precinct reported this complaint to IAB on behalf of § 87(2)(b) and § 87(2)(b). The CCRB received this complaint on July 17, 2018, under log number 18-27118. § 87(2)(g)

The IAB log provided the complainants' addresses, but no phone numbers. Lexis Nexis and CLEAR searches confirmed § 87(2)(b)'s address and provided a potential number. A BADS search and CTS search for § 87(2)(b) did not yield any additional contact information. The potential number was determined to be out of service. Between July 19, 2018, and August 6, 2018, three letters were mailed to § 87(2)(b)'s address. To date, the U.S. Postal Service has not returned the letters. § 87(2)(b)'s IAB interview provided an email address and another address; however, a Google search of the address determined that it was invalid. Between August 27, 2018, and September 17, 2018, four emails were sent to § 87(2)(b). To date, he has not responded to the emails. On August 29, 2018, § 87(2)(b) was contacted, and he provided an alternate telephone number and an address for § 87(2)(b). Between September 5, 2018, and September 19, 2018, the number was called five times, but there was a message each time stating that the number was not accepting calls at this time. Two letters were mailed to § 87(2)(b)'s alternate address on September 5, 2018, and September 12, 2018. To date, the U.S. Postal Service has not returned the letters. On September 26, 2018, searches of the NYC Department of Correction and the NYS Department of Correction and Community Supervision determined that § 87(2)(b) was not incarcerated.

Lexis Nexis and CLEAR searches for § 87(2)(b) provided two alternative addresses and four potential phone numbers. A BADS search and a CTS search for § 87(2)(b) did not provide any additional contact information. An interview conducted by IAB provided an email address. Three of § 87(2)(b)'s potential numbers were out of service or a wrong number. The last number was called five times between July 19, 2018, and August 6, 2018, but the number continued to ring without an answer or a voicemail prompt. Two emails were sent to § 87(2)(b) between August 27, 2018, and September 25, 2018. To date, § 87(2)(b) has not responded to the emails. Between July 19, 2018, and August 6, 2018, three letters were mailed to § 87(2)(b)'s three potential addresses. On August 6, 2018, the U.S. Postal Service returned one of the letters addressed to § 87(2)(b). None of the other letters mailed to § 87(2)(b) were returned. On September 26, 2018, searches of the NYC Department of Correction and the NYS Department of Correction and Community Supervision determined that § 87(2)(b) was not incarcerated.

Lexis Nexis and CLEAR searches provided an alternative address and a potential number. A BADS search provided a third address for § 87(2)(b) and confirmed the number found via Lexis Nexis and CLEAR. A CTS search did not provide any additional contact information. On July 19, 2018, and July 23, 2018, § 87(2)(b) was called and voicemails were left. Between July 31, 2018, and August 6, 2018, § 87(2)(b) was called three additional times, but there was a message each time stating that the number was not accepting calls at the subscriber's request. Between July 19, 2018, and August 6, 2018, three letters were mailed to § 87(2)(b)'s potential addresses. On August 15, 2018, the U.S. Postal Service returned a letter addressed to § 87(2)(b). None of the other letters mailed to § 87(2)(b) have been returned. On September 26, 2018, searches of the NYC Department of Correction and the NYS Department of Correction and Community Supervision determined that § 87(2)(b) was not incarcerated.

§ 87(2)(b) was not initially considered a victim in this case, however, § 87(2)(b) identified himself as a victim in an interview with IAB. On August 29, 2018, § 87(2)(b) was contacted and

he scheduled an appointment for September 6, 2018. On September 4, 2018, § 87(2)(b) received an automated text message reminder of his appointment. § 87(2)(b) missed his scheduled appointment and did not call beforehand to cancel or reschedule. On September 10, 2018, § 87(2)(b) was contacted, during which he stated that he missed his last scheduled appointment because of childcare issues, acknowledged that he received a text message reminder of his appointment, and scheduled a second appointment for September 17, 2018. On September 15, 2018, § 87(2)(b) received an automated text message reminder of his appointment. § 87(2)(b) missed his second scheduled appointment and did not call beforehand to cancel or reschedule. On September 7, 2018, a missed appointment letter was mailed and emailed to § 87(2)(b). To date, the U.S. Postal Service has not returned the letter and § 87(2)(b) has not responded to the email. On September 26, 2018, searches of the NYC Department of Correction and NYS Department of Correction and Community Supervision websites determined that § 87(2)(b) was not incarcerated.

§ 87(2)(g)

Squad No.: _____

Investigator: _____

Signature	Print Title & Name	Date
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Squad Leader: _____

Signature	Print Title & Name	Date
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Reviewer: _____

Signature	Print Title & Name	Date
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